



Office of Public Affairs
U.S. Department of Justice



Marketer Sentenced for \$11.5M Genetic Testing Fraud and Kickback Scheme

Friday, September 19, 2025

For Immediate Release

Office of Public Affairs

Robert Desselle, 47, was sentenced today in Tampa, Florida, to 57 months in prison for conspiracy to defraud the United States and to pay and receive health care kickbacks. Desselle pleaded guilty in February 2025. In addition, Desselle was ordered to pay \$4.5 million in restitution and to forfeit \$2.1 million of the criminal proceeds.

According to court documents, Desselle and his co-conspirators convinced Medicare beneficiaries to take genetic tests that they did not need. Desselle paid other marketers, who were not medical professionals, to recruit vulnerable Medicare beneficiaries at grocery stores, pharmacies, or car dealerships and persuade them to take the tests using deceptive methods. Desselle then bribed a telemedicine company to supply doctors' orders for the tests. The orders and test kits were then sent to clinical laboratories who paid Desselle and his co-conspirators kickbacks in exchange for the referrals.

From June 2018 to December 2020, Desselle and his co-conspirators caused the laboratories to bill \$11.5 million to Medicare. Medicare paid out \$4.5 million on these claims. Desselle personally earned over \$2.1 million from the scheme.

The Department of Health and Human Services Office of the Inspector General (HHS-OIG) investigated the case.

Acting Assistant Attorney General Matthew Galeotti of the Justice Department's Criminal Division and Deputy Inspector General for Investigations Christian J. Schrank for HHS-OIG made the announcement.

Trial Attorney Charles D. Strauss of the Criminal Division's Fraud Section prosecuted the case.

The Fraud Section leads the Criminal Division's efforts to combat health care fraud through the Health Care Fraud Strike Force Program. Since March 2007, this program, currently comprised of nine strike forces operating in 27 federal districts, has charged more than 5,800 defendants who collectively have billed federal health care programs and private insurers more than \$30 billion. In addition, the Centers for Medicare & Medicaid Services, working in conjunction with the Office of the Inspector General for

the Department of Health and Human Services, are taking steps to hold providers accountable for their involvement in health care fraud schemes. More information can be found at www.justice.gov/criminal-fraud/health-care-fraud-unit.

Updated September 19, 2025

Topic

HEALTHCARE FRAUD

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Press Release Number: 25-794

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Thank you, Secretary Kennedy. Today's record healthcare fraud charges and arrests makes clear that there is no case too big, no scheme too complex, and no hiding place too remote...

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